

(Name of Court)

**Form 32C: Affidavit for
Warrant of Committal**

at _____
Court office address

dated _____

Applicant(s)/Recipient(s) *(Strike out inapplicable term.)*

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Respondent/Payor *(Strike out inapplicable term.)*

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

My name is *(full legal name)* _____

I live in *(municipality & province)* _____

and I swear/affirm that the following is true:

- I am ☐ a recipient under a payment order.
☐ an assignee of a recipient under a payment order.
☐ an agent of the Director of the Family Responsibility Office.
☐ *(Other; specify.)*
- I am the person who ☐ asked the payor to file a financial statement.
☐ asked the payor to come to a financial examination.
☐ began a default hearing against the payor.
☐ made a contempt motion.
☐ *(Other; specify.)*

3. I make this motion to ask the court to issue a warrant of committal.

- On *(date)* _____, the court made an order of imprisonment, a photocopy of which is attached to this affidavit, committing
☐ the payor to prison for disobeying the court's order to file a financial statement,
☐ the payor to prison for disobeying the court's order or direction about a financial examination,
☐ the payor to prison for missing support payments,
☐ *(name)* _____ to prison for contempt of court,
☐ *(Other; specify.)*

for a period of _____ days, but the committal was suspended on certain conditions set out in the order of imprisonment.

5. The respondent/payor was

- ☐ in court or his/her lawyer or agent was in court when this order of conditional imprisonment was made.
- ☐ not in court nor was his/her lawyer or agent in court when the order of conditional imprisonment was made, but the order was served on him/her on (date) _____

6. The conditions that were broken and the circumstances of the breach are as follows: (*Set out conditions of the suspended imprisonment that were broken and details of the breach.*)

- ☐ Payment of the sum of \$ _____ was due by (date) _____ but no payment was made by that day.
- ☐ Payment of the sum of \$ _____ was due by (date) _____ but only a partial payment of \$ _____ was made by that day.
- ☐ (*Other; specify.*) _____

Put a line through any blank space left on this page.

Sworn/Affirmed before me at _____
municipality

in _____
province, state or country

on _____
date

Commissioner for taking affidavits
(Type or print name below if signature is illegible.)

Signature
(This form is to be signed in front of a
lawyer, justice of the peace, notary
public or commissioner for taking
affidavits.)

Note to Moving Party: You must attach a photocopy of the court's order of conditional imprisonment to this affidavit.